

TENTATIVE RULINGS

DEPT C28

Judge Thomas S. McConville

July 6, 2026 at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it will be the party's responsibility to provide a court reporter. Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- [Civil Court Reporter Pooling](#); and
- For additional information, please see the court's website at [Court Reporter Interpreter Services](#) for additional information regarding the availability of court reporters.

Tentative rulings: The court endeavors to post tentative rulings on the court's website in the morning, prior to the afternoon hearing. However, ongoing proceedings such as jury trials may prevent posting by that time. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted. The court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on tentative rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5228. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C28 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C28 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5228 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

Arguments: The court will allow arguments on the pending motions up to 10 minutes per side, but those arguments must not repeat arguments previously made in each parties' applicable briefs.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and Orange County Superior Court rule 180.

#	Case Name	Tentative
50.	8500 Haven, LLC v. Sahara Construction Co. 2024-01413701	Attorney Bruce D. Rudman, Esq. and Catherine R. Finamore, Esq.'s Motion to be Relieved as Counsel of Record for Defendants Sahara Construction Co., Inc. and Paul Ventura is DENIED. The Declaration in support of the motion states "Our firm's monthly bills and correspondence have been sent to Sahara Construction Co., Inc. and Paul Ventura at the clients' address of 8523 Lankershim Blvd. Sun Valley, CA 91352. None of the mail has been returned to us as undeliverable. As a matter of fact, this firm's March 2026 bills were mailed to all clients . . . on April 3, 2026. As of the date of this declaration, neither the envelope sent to Mr. Ventura and Sahara Construction have been returned as undeliverable or return to sender address unknow[n]." (See ROA 139 ¶3(b)(1)(d).) As the court previously stated on April 20, 2026 (in response to a prior motion to be relieved): This does not comply with CRC 3.1362, subd. (d) which provides: "As used in this rule, "current" means that the address was confirmed within 30 days before the filing of the motion to be relieved. <u>Merely demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current...</u>" Moving attorney must demonstrate that the motion was served to the clients at their last known mailing address which has been confirmed as current. The above declaration is not sufficient to establish the address is current. If Moving Attorney is not able to confirm the address as current, Moving Attorney must set forth in the declaration in support of the motion what efforts have been undertaken to either confirm the address as current and/or locate a more current address for the client. See Judicial Council Form MC-052, ¶3(b)(2). For ease, the court quotes from the Rutter Group Practice Guide: "Civil Procedure Before Trial," Sections 9:388-391 (c) [9:388] Service: The notice of motion, declaration and proposed order must be served on the client and all other parties who have appeared in the case. [CRC 3.1362(d)]

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		1) [9:389] Special requirements where client served by mail: When the client is served by mail, the attorney's declaration must show that the client's address was confirmed within the last 30 days and how it was confirmed (i.e., by conversation, telephone, or mail with return receipt requested). [CRC 3.1362(d)] Merely stating the papers were sent to the client's last known address and were not returned will not itself be sufficient to demonstrate that the address is current. [CRC 3.1362(d)] [9:390] Reserved. 2) [9:391] Where client's address unknown: If the attorney is unable to confirm that the client's address is current, the attorney's declaration must state what was done in attempting to obtain a current address, such as: — mailing the motion papers to the client's last known address with return receipt requested; — calling the client's last known telephone number(s); — contacting persons familiar with the client (specify); — conducting a search (describe); and — other efforts, which must be specified. [CRC 3.1362(d)] Counsel must also justify why counsel should be relieved even if the client cannot be served with the moving papers. If a future motion is filed, counsel should read this order and the California Rules of Court, and comply. Moving attorney shall provide notice of this ruling.
51.	Licuaco v. Fawaz 2025-01477063	Cross-Defendant Cecile Licuaco's demurrer to the 1st through the 5th causes of action of the cross-complaint of Khaled Fawaz is SUSTAINED in its entirety with ten days leave to amend. <u>1st cause of action for Fraud</u>

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		Generally, fraud must be pled specifically; general and conclusory allegations do not suffice. <i>Murphy v. BDO Seidman</i> (2003) 113 Cal.App.4th 687. This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered. <i>Id.</i> Here, Fawaz contends he has sufficiently alleged the fraud in paragraphs 19, 20, 23, 24, 25 and 27. The referenced paragraphs are not contained in the fraud cause of action itself, but are incorporated into the fraud claim by reference. The key issue is that the fraud claim itself must contain or incorporate allegations with sufficient particularity to meet the specificity requirement. The facts constituting every element of fraud must be alleged with particularity. The policy of liberal construction of the pleadings will not ordinarily be invoked to sustain a pleading defective in any material respect when fraud is at issue. <i>Small v. Fritz Companies, Inc.</i> (2003) 30 Cal.4th 167. Here, only the alleged misrepresentation that is pled with any specificity is that the HMO/PPO issue, but the alleged fraud incorporates additional non-specific false promises. <u>2nd cause of action for bad faith misrepresentation</u> California does not recognize a freestanding tort called "bad faith misrepresentation"; rather, misrepresentation claims are statutory forms of fraud and deceit under Civil Code §§ 1709 and 1710, while "bad faith" is a distinct cause of action rooted in the implied covenant of good faith and fair dealing. While negligent misrepresentation falls within the statutory definition of fraud and deceit, it is treated as a separate theory of liability from intentional misrepresentation (actual fraud). See <i>Seneca Communications, Inc. v. International Bank of California</i> (1980) 103 Cal.App.3d 541. By contrast, intentional misrepresentation (fraud) requires scienter — a knowing falsehood — which negligent misrepresentation does not. <i>Anderson v. Deloitte & Touche</i> (1997) 56 Cal.App.4th 1468. "Bad faith", on the other hand, refers to the tortious breach of the implied covenant of good faith and fair dealing — not to misrepresentation. <i>Hand v. Farmers Ins. Exchange</i> (1994) 23 Cal.App.4th 1847. This bad faith tort is most commonly recognized in the insurance context, where an insurer's subjective bad intentions. <i>Bosetti v. United States Life Ins. Co. in the City of New York</i> (2009) 175 Cal.App.4th 1208. A

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		cause of action for bad faith rests on the contractual relationship and the implied covenant, not on a false statement of fact, and courts have treated bad faith and misrepresentation as separate and distinct causes of action. See <i>Agricultural Ins. Co. v. Superior Court</i> (1999) 70 Cal.App.4th 385. Fawaz’s allegations in the second cause of action fail to identify the legal theory on which they are based. <u>3rd cause of action for negligence</u> The allegation that a defendant failed to ensure a "smooth transition of the Practice as promised, negotiated for, and agreed upon" (¶ 43) is framed in contractual terms. Generally, where the negligent performance of a contract amounts to nothing more than a failure to perform the express terms of the contract, the claim is one for contract breach, not negligence. <i>North American Chemical Co. v. Superior Court</i> (1997) 59 Cal.App.4th 764. This means that framing a duty solely by reference to what was “promised” and “agreed upon” generally does not, standing alone, establish a tort duty of care. The cross-complaint fails to allege facts showing a duty of care independent of the contract. <u>4th cause of action for unjust enrichment</u> The elements of a cause of action for unjust enrichment are simply stated as receipt of a benefit and unjust retention of the benefit at the expense of another. <i>Professional Tax Appeal v. Kennedy-Wilson Holdings, Inc.</i> (2018) 29 Cal.App.5th 230. The theory of unjust enrichment requires one who acquires a benefit which may not justly be retained to return either the thing or its equivalent to the aggrieved party so as not to be unjustly enriched. <i>Prakashpalan v. Engstrom, Lipscomb & Lack</i> (2014) 223 Cal.App.4th 1105. The allegations here — that Cross-Defendants wrongfully obtained money and intellectual property through lying, false statements, and fraud — align with this recognized basis for unjust enrichment. Nevertheless, a critical limitation applies: unjust enrichment is an equitable remedy, and equitable relief such as unjust enrichment will not be given when the plaintiff's remedies at law are adequate. <i>Sepanossian v. National Ready Mixed Concrete</i> (2023) 97 Cal.App.5th 192. Where, as here, an

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		unjust enrichment claim merely incorporates allegations that are derivative of another statutory or legal claim that itself makes restitution available, a separate unjust enrichment cause of action may be dismissed. As the fraud allegations are pled as a standalone cause of action seeking the same relief, sustaining the demurrer is appropriate. <i>Lebrun v. CBS Television Studios, Inc.</i> (2021) 68 Cal.App.5th 199. <u>5th cause of action for unfair competition</u> As Fawaz has failed to sufficiently allege any underlying claim, the claim asserted under California Business and Professions Code § 17200 fails. The cross-complaint should allege specific facts such as: what representations were made to the public (and whether they were written, oral, or in advertisements); when and where these representations occurred; what made them false or misleading; how the retention of monies constituted a deceptive business practice; and how members of the public were likely to be deceived by the defendant's conduct. Without such factual allegations, the claim amounts to little more than a recitation of the statutory language, which is insufficient to survive a demurrer. The case management conference is continued to November 16, 2026 at 9:00 a.m. in Department C28. Licuaco shall give notice of this ruling.
52.	Nguyen v. City of Santa Ana 2024-01405366	Defendant The City of Santa Ana's demurrer to Plaintiffs Khanh and Bang Nguyen's Third Amended Complaint is OVERRULED. Within 10 days of this ruling, Defendant shall file an Answer to the Third Amended Complaint. In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) Questions of fact cannot be decided on demurrer. (<i>Berryman v. Merit Prop. Mgmt., Inc.</i> (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of

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		judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) Defendant argues that a demurrer is warranted because Plaintiffs have not complied with the claim presentation requirement of Gov. Code §915 as it pertains to the Fourth Cause of Action for Wrongful Death. In support of this argument, Defendant requests the court to take judicial notice of the fact that the City has no record of having received any claim regarding the Fourth Cause of Action for Wrongful death within 1 year of the accrual of this cause of action. Government Code §915.2, subd. (a) provides in relevant part, "The claim, amendment, application, or notice shall be deemed to have been presented and received at the time of deposit." Plaintiffs allege in the Third Amended Complaint that they complied with Gov. Code §§915 and 915.2 by depositing their claims in the United States mail, addressed to the Clerk of the Council of the City of Santa Ana on 4/16/25. (TAC ¶¶11-16.) As a result, the question of whether the City Clerk for the City of Santa Ana has a record of receiving Plaintiffs' claim form does not demonstrate as a matter of law that Plaintiffs failed to comply with the requirements of Gov. Code §§915 and 915.2. Accordingly, the demurrer cannot be sustained and the request for judicial notice is DENIED, as the matters Defendant requests the court to take judicial notice of are not relevant to the disposition of the demurrer. Plaintiffs shall provide notice of this ruling.
53.	Fuller v. Exp Realty of California, Inc. 2024-01411644	Defendants Exp Realty of California, Inc., and Christian Fernandez's Demurrer to the First Amended Complaint ("FAC") is OVERRULED in part and SUSTAINED in part. Claims by Mackenzie Fuller On June 10, 2022, Plaintiffs entered into the contract to purchase the real property located at 43B Surfside, Seal Beach ("Property"). (FAC ¶ 7.) Their purchase closed and Plaintiffs took possession of the Property on July 8, 2022. (FAC ¶ 14.) Joshua Fuller filed the initial complaint on July 8, 2024. Mackenzie Fuller was not named as a Plaintiff until November 12, 2025.

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		Defendants contend Mackenzie is barred from pursuing her claims against Defendants because her lawsuit was filed more than three years after the closing on the Property. The statute of limitations under the first cause of action for violation of Civil Code §§ 1102 and 2079 is two years from the date of possession. (Civ. Code § 2079.4) For claims of fraud and negligence the statute of limitations is three years and two years respectively. (Code Civ. Proc. §§ 338 and 339.) "Under the doctrine of relation back, a court deems an amended complaint to have been filed at the time of an earlier complaint. The doctrine requires that the amended complaint rest on the same general set of facts, involve the same injury, and involve the same "instrumentality" or cause of injury." (<i>Hutcheson v. Superior Court</i> (2022) 74 Cal.App.5th 932, 940.) "[A]n amended pleading that adds a new plaintiff will not relate back to the filing of the original complaint if the new party seeks to enforce an independent right or to impose greater liability against the defendants." (<i>Estrada v. Royalty Carpet Mills, Inc.</i> (2022) 76 Cal.App.5th 685, 715.) Defendants admit in the moving papers that "[t]he allegations [of the FAC] are not substantively changed." The FAC is based on the same operative facts, the same injury and the same offending conduct alleged in the original complaint. Mackenzie does not seek recovery for a separate personal injury, independent economic loss or distinct cause of action. Rather, she was added as a co-purchaser of the Property seeking recovery for the same property damage and diminution in value arising from the same alleged misconduct of Defendants. No new independent rights are being asserted by Mackenzie. Therefore, the relation back doctrine applies to this case and Mackenzie's claims are not barred by the statute of limitations. Accordingly, the demurrer as to the statute of limitations with respect to plaintiff Mackenzie is OVERRULED. First Cause of Action – Violation of Civil Code §§ 1102 and 2079 Civil Code section 1102 applies to the transfer by sale of real property. (Civ. Code, § 1102.) While sellers must make broad disclosures, agents must make the disclosures required by section Civil Code section 2079. (Civ. Code § 1102.1.) That section requires the real estate broker or agent to "conduct a reasonably competent and diligent <u>visual</u> inspection of the property offered for sale and to disclose to that prospective buyer all facts materially affecting the value or desirability of

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		the property that an investigation would reveal.” (Civ. Code § 2079 [emphasis added].) “The inspection to be performed pursuant to this article does not include or involve an inspection of areas that are reasonably and normally inaccessible. Accordingly, a seller’s real estate agent has a statutory duty to disclose only visible defects, i.e., to disclose only what a ‘reasonably competent and diligent visual inspection of the property’ would reveal.” (<i>Peake v. Underwood</i> (2014) 227 Cal.App.4th 428, 442 [cleaned-up].) Defendants argue the FAC does not allege facts that Defendants did not disclose what they saw. While Plaintiffs claim that Defendants failed to disclose “defects in the heating, air conditioning, plumbing, interior or exterior windows, walls, ceilings, patio/decking, and washer/dryer hookups” (FAC ¶ 19), Plaintiffs do not allege that these purported defects were visible, or what defects could have discovered by a competent and visible inspection. The FAC, however, alleges that Defendants knew of a visible water stain in the garage, and knew of prior leaks that had not been repaired and affirmatively misrepresented that all prior leaks were repaired. (FAC ¶¶ 11, 20.) The FAC also alleges that Defendants had actual and/or constructive knowledge of the conditions on the Property and did not disclose them. Under section 2079, Defendants are responsible for disclosing all material facts affecting the value of the Property that an investigation would reveal. If they knew of such conditions, then they were required to disclose them. Accordingly, the demurrer to the first cause of action is OVERRULED. Second Cause of Action – Fraudulent Concealment The elements of a cause of action for fraud are: (1) misrepresentation, which includes a concealment or nondisclosure; (2) knowledge of the falsity of the misrepresentation, i.e., scienter; (3) intent to induce reliance on the misrepresentation; (4) justifiable reliance; and (5) resulting damages. (<i>Small v. Fritz Companies, Inc.</i> (2003) 30 Cal.4th 167, 173.) “In California, fraud must be pled specifically; general and conclusory allegations do not suffice.” (<i>Lazar v. Superior Court</i> (1996) 12 Cal.4th 631, 645.) “This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered.” (Ibid. [cleaned-up].)

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		Courts have strictly limited the scope of a seller's agent's disclosure duties under a fraudulent concealment theory. (<i>Peake, supra</i>, 227 Cal.App.4th at 444 [cleaned-up].) "[I]n the context of a real estate transaction, "it is now settled in California that where the seller knows of facts materially affecting the value or desirability of the property ... <i>and also knows that such facts are not known to, or within the reach of the diligent attention and observation of the buyer, the seller is under a duty to disclose them to the buyer.</i>" (Ibid.) Defendants contend there are no facts to support a fraud claim against defendant Fernandez. The representations and disclosures required are made by the seller, not the seller's agent or broker. They have no duty to independently verify the seller's representations. (<i>Robinson v. Grossman</i> (1997) 57 Cal.App.4th 634, 641-642.) While this might be true, the seller's agent has a duty to disclose information or facts that s/he is aware of and knows materially affect the value or the desirability of the property, regardless of what the seller tells him. The FAC alleges Fernandez falsely represented "that the garage structure of the Property had no defects, that the garage did not leak, the lower balcony/deck had been waterproofed, there was no water intrusion, and all prior leaks had been repaired, when in fact Agent knew the garage had leaks, water intrusion, and mold." (FAC ¶ 26.) Plaintiffs further allege Fernandez concealed the truth with the intent to induce them to enter into the agreement to purchase the Property. Had they known the truth, they would not have entered into the agreement or would have negotiated the purchase price to account for the extensive costs of repairs. (FAC ¶ 16.) The allegations in the FAC are sufficient to state a cause of action for fraud against Fernandez. Accordingly, the demurrer to the second cause of action is OVERRULED. Third Cause of Action - Negligent Misrepresentation Defendant argues the FAC fails to allege the representations made specifically by Fernandez, and the representations made by Exp Realty. As stated above, the FAC states what misrepresentations were made by Fernandez, however, it does not state what misrepresentations were made by Exp Realty and/or why they are liable to Plaintiffs.

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		Accordingly, the demurrer to the third cause of action with respect to Fernandez is OVERRULED and SUSTAINED as to Exp Realty. Plaintiffs have 20 days leave to amend. The case management conference is continued to November 16, 2026 at 9:00 a.m. in Department C28. The order to show cause is discharged. Defendants shall give notice of this ruling.
54.	Ozzy Vista Panorama LLC v. Jack A. Hanson, Trustee of the Hanson Family Trust dated October 6, 2022 2026-01550880	The motion by defendants Jack A. Hanson and Denise E. Hanson, Co-Trustees of the Hanson Family Trust dated October 6, 2022, to strike portions of plaintiff Ozzy Vista Panorama LLC's Complaint is GRANTED, with leave to amend. (Code Civ. Proc., §§ 435, 436 [authorizing motion].) The Complaint fails to allege sufficient specific facts supporting punitive damages. (Civ. Code, § 3294 [authorizing punitive damages]; <i>Today's IV, Inc. v. Los Angeles County Metropolitan Transportation Authority</i> (2022) 83 Cal.App.5th 1137, 1193 [claims for punitive damages "must include specific factual allegations showing that defendant's conduct was oppressive, fraudulent, or malicious ... [p]unitive damages may not be pleaded generally"]; <i>Lackner v. North</i> (2006) 135 Cal.App.4th 1188, 1210 ["despicable" conduct requirements].) The court orders that ¶ 31 of the Complaint, and that portion of the prayer for relief reading "punitive damages" [Complaint at 8:14] are stricken. Plaintiff is granted 15 days to file a First Amended Complaint, if at all. Moving parties shall give notice of this ruling.
55.	Wang v. Yan 2026-01559681	Plaintiffs Jingfang Wang and Zhihu Yu's Verified Petition for Leave to File a Civil Conspiracy Claim pursuant to Civ. Code §1714.10 is DENIED without prejudice. Plaintiffs have failed to file a proof of service of the petition no later than five court days before the time appointed for the hearing. (See Cal. Rules of Court, Rule 3.1300, subd. (c).) Plaintiffs also failed to provide supporting affidavits with their petition. Civ. Code §1714.10(a) (the filing of the verified petition must have "supporting affidavits stating facts upon which the liability is based.")

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		Should Plaintiffs still wish to pursue the proposed amendments to include a conspiracy claim against Defendants Richter, Mello and Fast Eviction Service, Plaintiff shall file and validly serve a renewed petition, accompanied by evidence and the proposed pleading, and file a proof of service that complies with the requirements of the Code of Civil Procedure. Clerk shall provide notice. Service of the notice upon Plaintiffs shall be by U.S. Mail.
56.	Applegate v. Everts 2025-01507318	Defendant Brockton Everts' Motion to Set Aside the Default is CONTINUED to September 21, 2026 at 2:00 p.m. in Department C28. "Before filing any document, a party must serve . . . one copy of the document on the attorney for each party separately represented, on each unrepresented party, and on any other person or entity when required by statute or rule." (CRC, Rule 8.817, subd. (a)(1).) In addition, "[t]he party must attach to the document presented for filing a proof of service showing service on each person or entity required to be served. . . ." (CRC, Rule 8.817, subd. (a)(2).) "Proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing." (CRC, Rule 3.1300, subd. (c).) Here, Defendant has failed to file a valid proof of service of the motion on the opposing party. Therefore, the hearing is continued to allow Defendant to properly serve and file the motion and proof of service in accordance with the Code. Defendant shall serve the motion and supporting documents no later than July 17, 2026, and file a proof of service with the court within 5 days of service. Plaintiff is urged to familiarize himself with the Rules of Court as well as the Code of Civil Procedure. "Mere self-representation is not a ground for exceptionally lenient treatment. Except when a particular rule provides otherwise, the rules of civil procedure must apply equally to parties represented by counsel and those who forgo attorney representation." (<i>Rappleyea v. Campbell</i> (1994) 8 Cal.4th 975, 984-985.) Clerk shall provide notice of this ruling.
57.	OCMH Inc. v. Daniel	Defendant Shipjoy, LLC's motion to set aside default and default judgment is GRANTED. (Code Civ. Proc., § 473, subd. (b).)

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	2023-01329371	The court hereby VACATES the 7/18/25 order striking Shipjoy’s cross-complaint and first amended answer to the first amended complaint, and SETS ASIDE Shipjoy’s default entered on 7/18/25 and the default judgment entered on 10/13/25. Shipjoy has brought this motion within a reasonable time and has acted diligently in doing so. (See <i>Younessi v. Woolf</i> (2016) 244 Cal.App.4th 1137, 1145 [“reasonable time” means moving party must show diligence in making the motion after discovery of the default].) Shipjoy’s default was entered by the court via a signed minute order on 7/18/25, and the default judgment was entered on 10/13/25. Shipjoy did not receive notice of the entry of its default because the 7/18/25 order was served on its prior counsel and not Shipjoy, who was no longer represented by counsel at that time. (Kim Decl. at Ex. D [clerk’s cert. of service]; D. Daniel Decl. ¶ 7; Y.I. Daniel Decl. ¶ 7.) Plaintiff OCMH, Inc. later mail-served Shipjoy with its default prove-up package (including its request for default judgment) on 9/11/25 (see ROA Nos. 150, 152), and Shipjoy retained new counsel shortly thereafter on 9/30/25. (D. Daniel Decl. ¶ 10.) Shipjoy’s new counsel then sought a stipulation setting aside the default/default judgment, but plaintiff refused. (Kim Decl. ¶¶ 12-13.) Subsequently, Shipjoy’s managers/owners were delayed in bringing about this motion due to certain religion observations (see D. Daniel Decl. ¶ 12; Y.I. Daniel Decl. ¶ 12), but brought this motion not too long after (initially on 11/6/25), less than a month after the default judgment was entered. Shipjoy has also adequately demonstrated its default and the default judgment were the result of mistake, surprise, and/or excusable neglect. (See Code Civ. Proc., § 473, subd. (b); <i>Kramer v. Traditional Escrow, Inc.</i> (2020) 56 Cal.App.5th 13, 28; see also <i>Johnson v. Pratt & Whitney Canada, Inc.</i> (1994) 28 Cal.App.4th 613, 623-624 [striking of answer not necessarily equivalent to entering default]; D. Daniel Decl. ¶¶ 7-8 [no notice that its default might be entered at the 7/18/25 OSC hearing; no notice that its default was entered on 7/18/25].) Shipjoy has also properly submitted copy of its proposed answer and cross-complaint, consisting of Shipjoy’s operative answer and cross-complaint previously filed in this action on

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		10/9/24 and 4/23/24, respectively. (See Kim Decl. ¶¶ 4-5, Exs. B-C.) Requests for judicial notice. Shipjoy's and plaintiff OCMH, Inc.'s requests for judicial notice are GRANTED. (See Evid. Code, § 452, subd. (d).) The court sets a status conference regarding the appeal for September 18, 2026 at 9:00 a.m. in Department C28. Shipjoy shall give notice of this ruling.
58.	Wardlow v. Evans Roofing Co., Inc. 2026-01555475	Defendant Evans Roofing Co., Inc.'s petition / motion to compel arbitration is GRANTED. (Code Civ. Proc., § 1281.2 [authorizing motion to compel arbitration].) Plaintiff Zachary Wardlow shall submit his claims against defendant to binding arbitration pursuant to their agreement. This action is stayed pending completion of arbitration. (Code Civ. Proc., § 1281.4.) The court sets a status conference re: binding arbitration for February 19, 2027 at 9:00 a.m. in Department C28. Five days before the status conference, the parties are ordered to submit a joint status report. Defendant met its burden to show a written arbitration agreement exists that covers plaintiff's claims. (<i>Rosenthal v. Great Western Fin. Securities Corp.</i> (1996) 14 Cal.4th 394, 413 ["Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence"]; <i>Gamboa v. Northeast Community Clinic</i> (2021) 72 Cal.App.5th 158, 164-166 [same, plus three-step process where signature disputed, not present here]; Ex. A to Petition [executed agreement requiring arbitration of "any claim, dispute, and/or controversy concerning any aspect of my employment ... that either I or the Company ... may have against each other which would otherwise require or allow resort to any court or other governmental dispute resolution forum arising from, related to, or having any relationship or connection whatsoever with my seeking employment with, employment by, or other association with the Com-pany, whether based on tort, contract, statutory, or equity, or otherwise," with exceptions not present here]; Fleischman Decl., ¶¶ 2, 5, 6 [employment relationship, authenticating arbitration agreement].) Plaintiff also fails to show that arbitration should be denied on unconscionability grounds. (<i>Armendariz v. Foundation Health</i>

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		<i>Psychcare Services, Inc.</i> (2000) 24 Cal.4th 83, 114 [“<i>Armendariz</i>”] [both procedural and substantive unconscionability must be present in order for a court to exercise its discretion to refuse to enforce a contract under the doctrine of unconscionability].) Some procedural unconscionability is present, as there does not appear to be any dispute that execution of the arbitration agreement was a condition of employment. (Fleischman Decl., ¶ 5 [“All personnel who commence or continue employment with EVANS ROOFING CO., INC. are required to comply with the Company’s alternative dispute resolution policy, which includes the mandatory arbitration of employment-related claims”]; <i>OTO, L.L.C. v. Kho</i> (2019) 8 Cal.5th 111, 127–128 [standardized arbitration agreement as condition of employment].) However, plaintiff fails to show substantive unconscionability, which is also required. (<i>Armendariz, supra</i> at 114.) That the arbitration agreement is silent as to costs is not fatal. (<i>Id.</i> at 113 [employment arbitration agreement interpreted to require employer “to pay all types of costs that are unique to arbitration ... The absence of specific provisions on arbitration costs would therefore not be grounds for denying the enforcement of an arbitration agreement”]; accord, <i>Little v. Auto Stiegler, Inc.</i> (2003) 29 Cal.4th 1064, 1080–1081 [“We similarly conclude that an agreement to arbitrate a claim of wrongful termination contrary to public policy must be interpreted to implicitly include an agreement to proportion costs in a manner that is reasonable for the employee / claimant, in order to prevent the de facto waiver of unwaivable rights”].) The same is true of the provision allowing either party to seek review of the original arbitrator’s decision by a second arbitrator; further, there is no cost threshold for such review. (<i>Cummings v. Future Nissan</i> (2005) 128 Cal.App.4th 321, 330, FN 9, citing <i>Little v. Auto Stiegler, Inc., supra</i> [“A second level of review ... is not invalid so long as there is no dollar amount threshold for invoking it (which would make it almost exclusively an employer remedy)”].) Plaintiff cites no authority that an arbitration agreement that fails to identify a specific arbitration provider is substantively unconscionable. It is sufficient that a neutral arbitrator is designated, which is the case here. (<i>Armendariz, supra</i> at 102 [an arbitration agreement in the employment context “is lawful if it: ‘(1) <u>provides for neutral arbitrators</u>, (2) provides for more than minimal discovery, (3) requires a written award,

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		(4) provides for all of the types of relief that would otherwise be available in court, and (5) does not require employees to pay either unreasonable costs or any arbitrators' fees or expenses as a condition of access to the arbitration forum;"" emphasis added, internal citations omitted]; Ex. A to Petition [requiring arbitration by "a retired California Superior Court Judge" who "shall be subject to disqualification on the same grounds as would apply to a judge of such court"].) The remaining <i>Armendariz</i> factors are also satisfied. (Ex. A to Petition [incorporating discovery provisions of Code Civ. Proc., § 1283.05 "and all of the Act's other mandatory and permissive rights to discovery," written award, no limits on available relief].) Finally, failure to provide arbitral rules is grounds to find procedural unconscionability, not substantive unconscionability. (<i>Carbajal v. CWPSC, Inc.</i> (2016) 245 Cal.App.4th 227, 244–245 [collecting cases].) The case management conference is VACATED. Moving party shall give notice of this ruling.
59.	Bond v. California Department of Motor Vehicles 2026-01557585	Petitioner Rody John Bond's petition for writ of mandate is CONTINUED to September 14, 2026 at 2:00 p.m. in this department. Bond is ordered to serve the Department of Motor Vehicles with the petition and notice of the continued hearing no later than July 17, 2026, and file a proof of service with the court within 5 days of service. Bond shall also lodge a copy of the administrative record with the court by August 17, 2026. The court sets an Order to Show Cause hearing for August 28, 2026 at 9:00 a.m. to address why this petition should not be dismissed. If Bond fails to comply with the above order, the petition shall be dismissed, unless Bond appears on August 28, 2026 and shows good cause why the petition should not be dismissed. Clerk shall give notice of this ruling.
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